



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00117-01 / Swan Ranch Zone Change
Date: September 12, 2022

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/12/2022
- Public Services Committee 9/20/2022
- Second reading 9/26/2022
- Public Services Committee 10/4/2022
- Third and final reading 10/10/2022

Planning Commission Recommendation:

The Planning Commission heard this item at their September 6, 2022 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM SWAN RANCH PUD PLANNED UNIT DEVELOPMENT (ORDINANCE NO. 3989) TO CB COMMUNITY BUSINESS FOR LAND LOCATED NORTH OF HIGH PLAINS ROAD, WEST OF I-25."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on September 6, 2022, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as a parcel of land situated in the S½ of Section 27, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming, and being more particularly described as follows:

Commencing at the Southwest corner of said Section 27; thence N.62°29'51"E. a distance of 2837.87 feet to a point on the northerly right of way of High Plains Road right of way and the true point of beginning; thence continuing along said northerly right of way N.32°05'36"W. a distance of 349.90 feet to the beginning of a curve to the right and the easterly right of way of Clear Creek Parkway, said curve having a radius of 265.93 feet, a chord bearing of N.01°40'41"W. a chord distance of 269.66 feet and a central angle of 60°55'45", thence along the arc of said curve and the easterly right of way 282.79 feet; thence continuing along said easterly right of way the following courses and distances: N.28°47'09"E. a distance of 347.11 feet; thence N.32°53'25"E. a distance of 736.25 feet to a point on the centerline of an existing 100 powerline easement recorded at Book 2324, Page 1020 of the Laramie County Records; thence along said centerline S.63°22'44"E. a distance of 1355.64 feet to a point; thence S.49°40'42"E. a distance of 0.19 feet to a point on the westerly right of way of Interstate 25; thence along said westerly right of way the following courses and distances: S.39°07'13"W. a distance of 15.46 feet to the beginning of a curve to the right, said curve having a radius of 5480.25 feet, a chord bearing of S.40°27'01"W.", a chord distance of 248.61 feet and a central angle of 2°35'58", thence along the arc of said curve a distance of 248.63 feet; thence S.47°28'46"W. a distance of 386.38 feet; thence S.52°12'36"W. a distance of 288.38 feet to a point; thence S.60°10'16"W. a distance of 289.68 feet; thence

S.68°39'36"W. a distance of 387.90 feet; thence N.81°27'07"W. a distance of 292.15 feet more or less to the point of beginning.

is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



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Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

September 6, 2022

STAFF REPORT

FILE: UDC-22-00117-01: Swan Ranch – Zoning Map Amendment

REQUEST: A request to rezone approximately 36.4 acres of land from City PUD (ORD 3989) to CB Community Business

LOCATION: North of High Plains Road between Clear Creek Parkway and I-25

APPLICANT: Rande Pouppirt

AGENT: Shane Hansen

OWNER: Wyoming Horse Racing, LLC

ZONING: City Swan Ranch PUD (ORD 3989)

FUTURE LAND USE: Mixed-use Employment

PURPOSE: To allow the development of an entertainment facility with food service and future lodging

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the South Half of Section 27, Township 13 North, Range 67 West of the 6th Principal Meridian to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from City PUD (ORD 3989) to CB Community Business for 36.4 acres of land.

The proposed CB zoning allows variety of commercial, customer-based uses.

The land is currently vacant (although some limited agricultural operations – such as grazing – may be operating on the site). The impetus behind the zone change is an anticipated recreation use which will include food service and potentially lodging uses at a later date. The City PUD also defaults to the pedestrian-oriented design standards of the UDC for non-industrial uses, while the CB zone’s design standards are less onerous for a vehicle-oriented development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Employment	City Swan Ranch PUD	Vacant (possible agriculture)
North	Mixed-use Employment	County Swan Ranch PUD, City Swan Ranch PUD	Vacant (possible agriculture)
South	Mixed-use Employment, Public & Quasi-public	County Swan Ranch PUD	Office, WYDOT facility
East	Mixed-use Employment, Mixed-use Commercial	County A-2	Vacant (likely agriculture)
West	Industrial	County Swan Ranch PUD, City Swan Ranch PUD	Industrial

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is very close to the Urban Service Boundary, in an area with existing infrastructure.

The market opportunity associated with the freeway interchange would encourage the development of automobile-oriented commercial uses in this area. PlanCheyenne encourages the flexibility to be responsive to market demands.

This property is part of a designated gateway to Cheyenne. Investment has been put into the Welcome Center and the I-25 and High Plains Road interchange to make a positive impact on those entering not only Cheyenne, but the State of Wyoming. Gateways are encouraged to provide an enhanced visual experience, including the use of landscaping.

The Future Land Use Designation for this property is Mixed-use Employment Campus. Surrounding areas are designated Industrial, Mixed-use Employment Campus, and Mixed-use Commercial. According to comprehensive plan the optimal City zone for the subject property's future land use designation MUE Mixed-use Employment, although LI Light Industrial or CB Community Business zoning is often also applicable. The proposed zoning is CB. Mixed-use Employment Campus areas are encouraged to develop with a primary focus on employment designed in a business campus setting. Parks, plazas, pedestrian amenities, and commercial uses are expected parts of development established under this designation. While the regional development pattern and proposed zoning appear antithetical to these objectives, the plan specifically uses Swan Ranch as an example of a 'developing' Mixed-Use Employment Campus (and the plan was adopted after the original Swan Ranch PUD was adopted). It is evident that the framers of PlanCheyenne considered the Swan Ranch Rail Park as an acceptable form of Employment Campus, and designated this region as "Employment Campus" to reflect the current Swan Ranch conditions.

This property is also designated as a Community/Regional Activity Center on the Future Land Use Map. Activity Centers are intended for a mix of commercial and residential uses with access to regional transportation. Regional-serving retail is expected to be a major component of a Community/Regional Activity Center. The proposed CB zone is considered one of the optimal zoning for activity centers of this type.

The policies of PlanCheyenne are supportive of this proposed zone change. The future land use plan encourages more commercial-style zoning at this location.

The proposed zone change largely **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

All surrounding property within City are zoned with the Swan Ranch PUD, which is also the current zoning of this parcel. All surrounding property outside of City limits west of I-25 are zoned with the County PUD. Both the City and County PUDs allow a variety of industrial uses, with some commercial, service, or office uses.

This proposed zone change would allow this parcel to develop with more of a commercial nature than the surrounding property; however the property to the south is more of an office building, and commercial uses at this location may be able to provide services otherwise unavailable in the vicinity.

The proposed zoning is also compatible with the future land use designation of an activity center.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The property currently is zoned with an industrial-centric PUD, along with most of the surrounding area. The UDC building design standards for PUD development enforce pedestrian-scale design standards unless otherwise specifically indicated in the PUD, and this PUD only otherwise indicates for industrial uses. The nature of the property makes the property much more likely to develop with commercial uses if the property is zoned CB than if the property was zoned with the Swan Ranch PUD zone. The location of the property close to an interchange makes the development of automobile-oriented commercial uses expected and appropriate.

The current PUD basically defers to the HI zone for allowed uses. The HI zone prohibits a number of classic highway interchange commercial uses – including retail, food service, and lodging. The proposed CB zone allows these example uses as uses by right.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

Block sizes are not applicable in areas designated mixed-use employment or industrial. Access may be limited based on street classification and proximity to the interstate, but specific access would be reviewed with plat(s) or site plan(s). Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended to develop with regional-serving retail, employment, service, and civic uses in activity centers or areas designated Community Business by the comprehensive plan. This area is designated as an activity center by PlanCheyenne and has access to major transportation routes.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific development proposed in concert with this rezoning is a recreation facility with food service and potentially a future lodging use associated with the recreation and food service. Should the proposed development not be executed after approval, there are a number of commercial uses which would be eligible to be established at this location.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

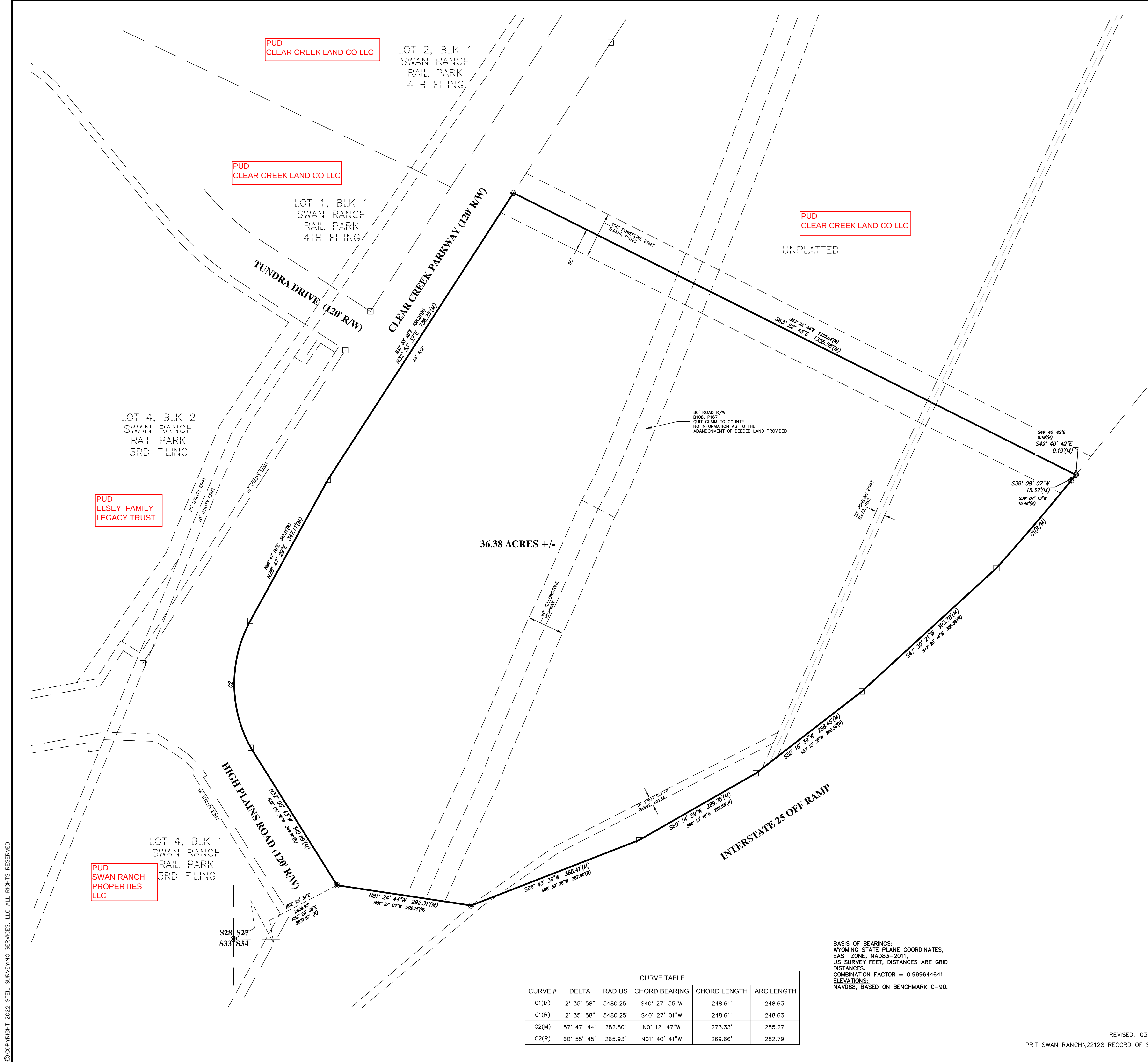
STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from City PUD to CB Community Business.

ATTACHMENTS:

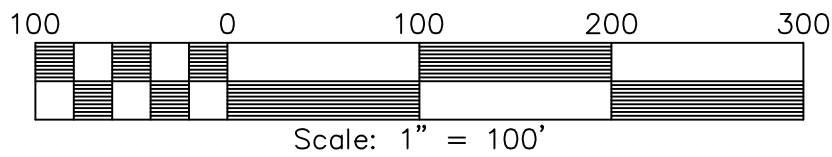
1. Applicant Provided Zone Change Map
2. Current Zoning Map
3. Future Land Use Map
4. Master Application

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LEGEND

- SET 5/8" X 24" LONG REBAR WITH 1 1/2" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1 1/2" ALUMINUM CAP STAMPED "P.L.S. 2337"
- FOUND R/W MONUMENT
- ⊙ FOUND 5/8" REBAR
- (M) DENOTES MEASURED DATA THIS SURVEY
- (R) DENOTES RECORD DATA



LEGAL DESCRIPTION

A parcel of Land being situated in the S½ of Section 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, and being more particularly described as follows:

Commencing at the southwest section corner of said Section 27; thence N.62°29'38"E. a distance of 2837.87 feet to a point on the northerly right of way of High Plains Road right of way and the true point of beginning; thence continuing along said northerly right of way N.32°05'36"W. a distance of 349.90 feet to the beginning of a curve to the right and the easterly right of way of Clear Creek Parkway, said curve having a radius of 265.93 feet, a chord bearing of N.01°40'41"W. a chord distance of 269.66 feet and a central angle of 60°55'45", thence along the arc of said curve and the easterly right of way 282.79 feet; thence continuing along said easterly right of way the following courses and distances: N.28°47'09"E. a distance of 347.11 feet; thence N.32°53'25"E. a distance of 736.25 feet to a point on the centerline of an existing 100 powerline easement recorded at Book 2324, Page 1020 of the Laramie County Records; thence along said centerline S.63°22'44"E. a distance of 1355.64 feet to a point; thence S.49°40'42"E. a distance of 0.19 feet to a point on the westerly right of way of Interstate 25; thence along said westerly right of way the following courses and distances: S.39°07'13"W. a distance of 15.46 feet to the beginning of a curve to the right, said curve having a radius of 5480.25 feet, a chord bearing of S.40°27'01"W. a chord distance of 248.61 feet and a central angle of 2°35'58", thence along the arc of said curve a distance of 248.63 feet; thence S.47°28'46"W. a distance of 386.38 feet; thence S.52°12'36"W. a distance of 288.38 feet to a point; thence S.60°10'16"W. a distance of 289.68 feet; thence S.68°39'36"W. a distance of 387.90 feet; thence N.61°27'07"W. a distance of 292.15 feet more or less to the point of beginning.

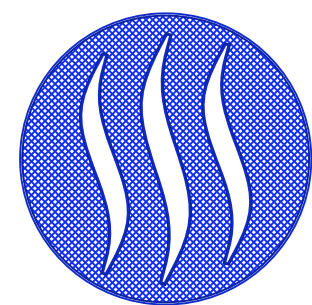
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

RECORD OF SURVEY FOR PRG-WYO INVESTORS, LLC

A PARCEL OF LAND SITUATED IN THE
S½ OF SECTION 27, T.13N., R.67W.,
OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING

PREPARED March, 2022



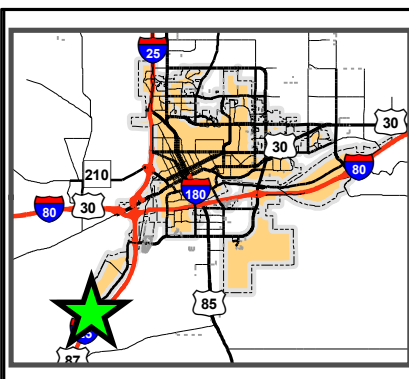
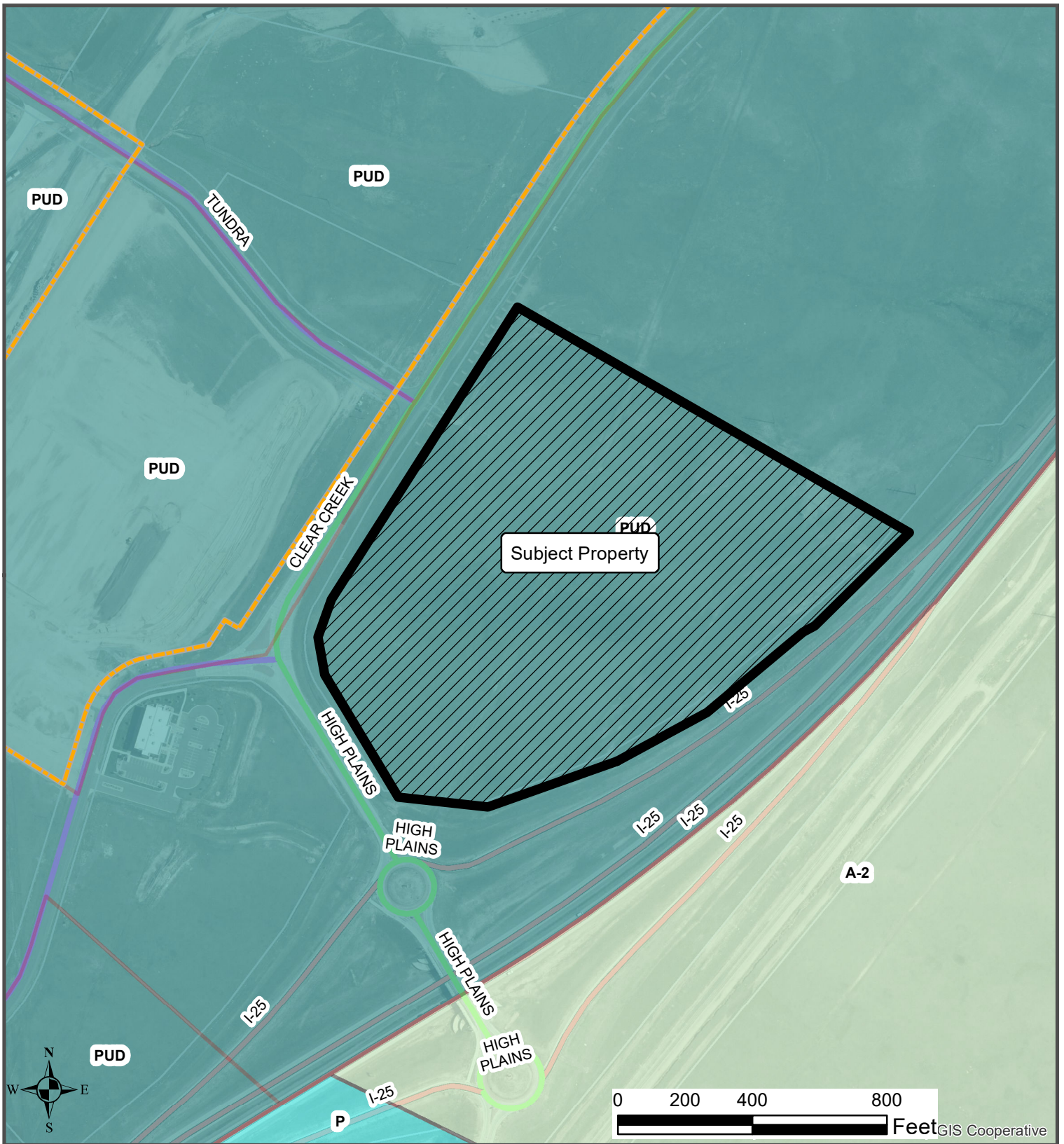
STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS

1102 WEST 19th ST. CHEYENNE, WY. 82001 ○ (307) 634-7273
756 GILCHRIST ST. WHEATLAND, WY. 82201 ○ (307) 322-9789
www.SteilSurvey.com ○ info@SteilSurvey.com

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.
COMBINATION FACTOR = 0.999644641
ELEVATIONS:
NAVD88, BASED ON BENCHMARK C-90.

CURVE TABLE					
CURVE #	DELTA	RADIUS	CHORD BEARING	CHORD LENGTH	ARC LENGTH
C1(M)	2° 35' 58"	5480.25'	S40° 27' 55"W	248.61'	248.63'
C1(R)	2° 35' 58"	5480.25'	S40° 27' 01"W	248.61'	248.63'
C2(M)	57° 47' 44"	282.80'	N0° 12' 47"W	273.33'	285.27'
C2(R)	60° 55' 45"	265.93'	N01° 40' 41"W	269.66'	282.79'

REVISED: 03/28/2022
PRIT SWAN RANCH\22128 RECORD OF SURVEY.dwg

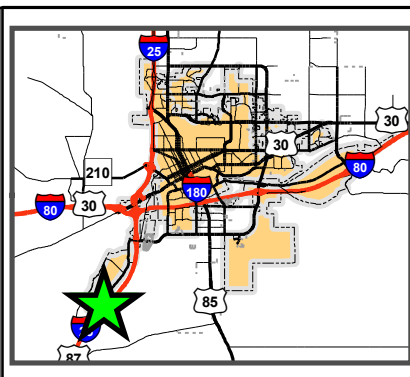
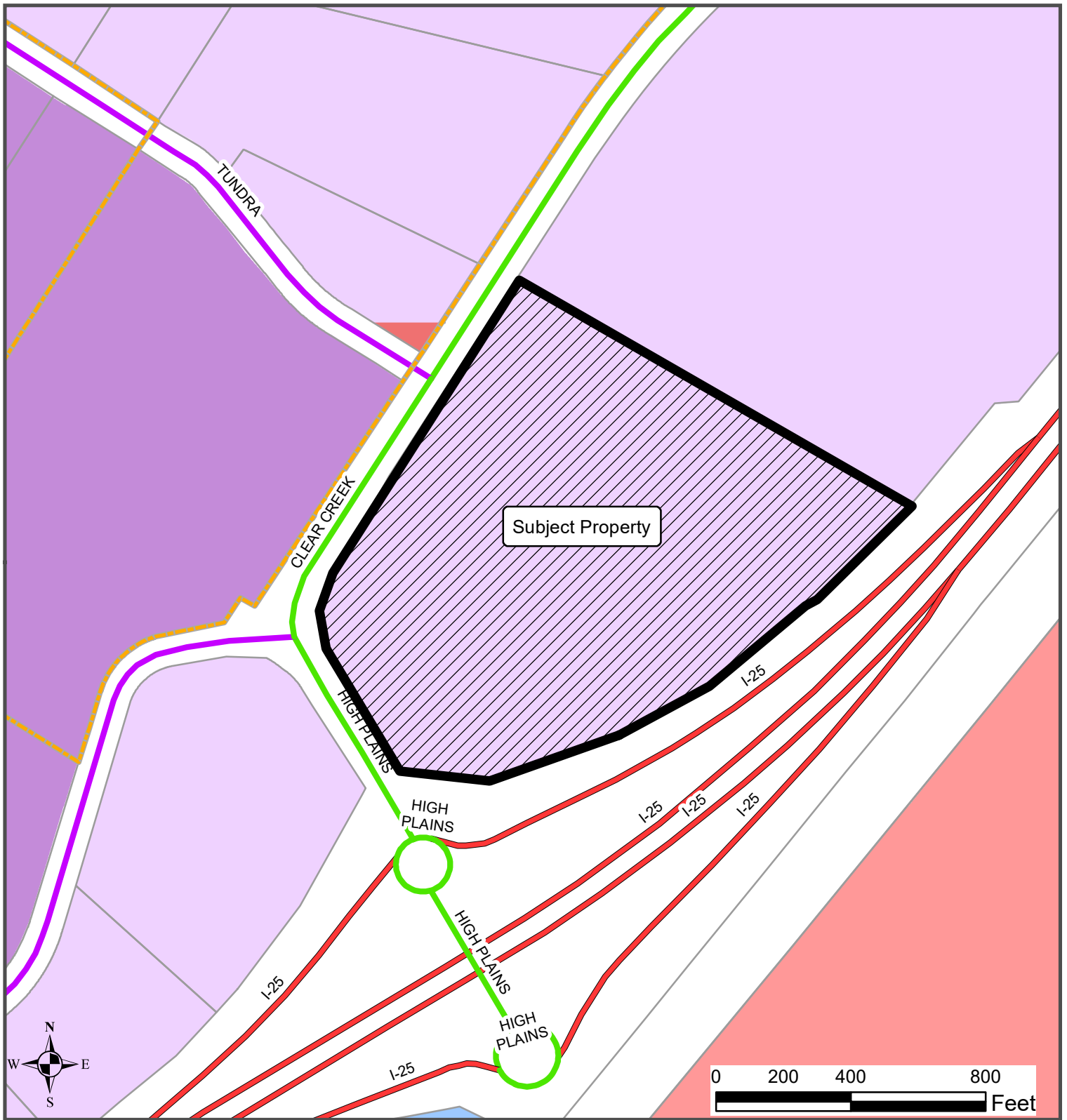


Attachment 2: Zoning Map UDC-22-00117

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 3: Land Use Map UDC-22-00117

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Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		

Planning and Development: Zoning Map Amendment Application

Submission date: **25 July 2022, 10:34AM**

Receipt number: **37**

Related form version: **10**

General Information

Applicant Name: **Rande Pouppirt**

Applicant Address: **2400 Dunn Ave , Suite B**

Applicant City: **cheyenne**

Applicant State: **wy**

Applicant Zip Code: **82001**

Applicant Phone: **307-778-8236**

Applicant Email: **Rande@pouppirt.com**

Representative Name: **Shane Hansen**

Representative Address: **1102 west 19th**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076347273**

Representative Email: **shansen@steilsurvey.com**

Owner Name: **Wyoming Horse Racing, LLC, a Wyoming limited liability company**

Owner Address: **Lot 55, Swan ranch**

Owner City:	cheyenne
Owner State:	wy
Owner Zip Code:	82007
Owner Phone:	307-778-8236
Owner Email:	Rande@pouppirt.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	GRANITE PEAK letter-of-authorization.pdf
Project Location (Street Address or General Location):	SWAN RANCH
Assessor's Parcel ID number(s)	13671410000400
Total Project Area	35 ACRES
Existing Zoning	PUD - Existing
Requested Zoning	CB - Community Business

Application-Specific Questions

Written Statement	CHANGING ZONING FROM PUD CITY TO CB CITY AS REQUIRED BY THE CITY
Zoning Map	22128 Zone Change Map.pdf
Notification Letter	neighbor-notification-letter-template (2).pdf buffer (2).csv
Supporting Documents / Information	22128 Zone Change Map.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
--	---

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

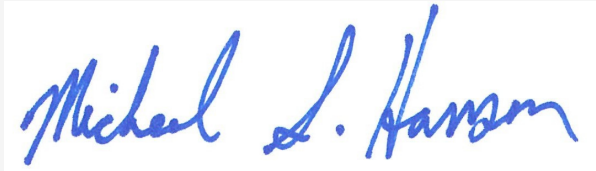
Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: SHANE HANSEN

A handwritten signature in blue ink that reads "Michael L. Hansen". The signature is written in a cursive style with a large initial 'M' and a distinct 'L'.

[Uploaded signature image: HANSEN SIGNATURE.jpg](#)

Please enter an email address for an email receipt.

shansen@steilsurvey.com